

HOUSE BILL 1484

By Gillespie

AN ACT to amend Tennessee Code Annotated, Title 8,
Chapter 7 and Title 39, relative to district attorneys
general.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "The Memphis Safe Task Force Accountability Act."

SECTION 2. Tennessee Code Annotated, Title 8, Chapter 7, Part 1, is amended by adding the following new section:

(a) The district attorney general of any judicial district in which operation viper or the Memphis safe task force is in effect shall submit a report to the attorney general and reporter, speaker of the senate, speaker of the house of representatives, district attorneys general conference, and United States attorney with jurisdiction in the judicial district whenever the district attorney general takes any of the following actions with regard to a felony offense the charges of which resulted from operation viper or the Memphis safe task force:

- (1) Enters into a plea agreement;
- (2) Lowers the charged offense;
- (3) Dismisses or otherwise declines to prosecute the offense.

(b) A district attorney general must submit a report required by subsection (a) within twenty-four (24) hours of the entry of an agreed plea, reduction in charged offense, issuance of an order of nolle prosequi or dismissal, or another formal action indicating a declination to prosecute.

(c) As used in this section:

(1) "Memphis safe task force" means a federal task force operating with the objective of ending street and violent crime in Memphis to the greatest possible extent through the promotion and facilitation of hypervigilant policing, aggressive prosecution, complex investigations, financial enforcement, and large-scale saturation of besieged neighborhoods with law enforcement personnel, while coordinating closely with state and local officials; and

(2) "Operation viper" means an ongoing federal bureau of investigation mission with a dedicated task force of federal, state, and local law enforcement engaging in a multi-phased, strategic plan to combat crime by leveraging the full extent of both federal and state resources.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.